

**Justification Review Document
for an Exception to Fair Opportunity – FAR 16.505(b)(2)**

Program/Equipment: Tactical Network Transport (TNT) On The Move (OTM); Satellite Transportable Terminal (STT) 208 (HP+) sustainment support services on behalf of Communications-Electronics Command (CECOM) Integrated Logistics Support Center (ILSC).

Authority: 10 United States Code (U.S.C.) 3406(c)(2) as implemented in FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

Amount: \$24,966,929.81

Prepared by:

Typed Name: [REDACTED] DSN: [REDACTED]

Title: OTM ILSM Team Lead Date: 12/9/2024

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Date Reviewed: 12/9/2024 E-Mail: [REDACTED]

Technical Representative:

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Controlled By: US Army/ CECOM ILSC C3T
CUI Category: General Procurement and
Acquisition Distribution
Limited Dissemination Control: FEDCON
POC: [REDACTED]

Reviews

I have reviewed this justification and find it adequate to support the justification for an exception to fair opportunity.

Legal Counsel

Typed Name: [REDACTED] DSN: _____

Signature: _____ Date: _____

Command Advocate for Competition

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Signature: _____ Date: _____

**Justification for an Exception
to Fair Opportunity Under FAR 16.505(b)(2)**

1. Contracting Activity: U.S. Army Contracting Command (ACC)- Aberdeen Proving Ground (APG), Division B (CCAP-DDB), 6472 INTEGRITY COURT, BUILDING 4401 Aberdeen Proving Ground, Maryland 21005-1846

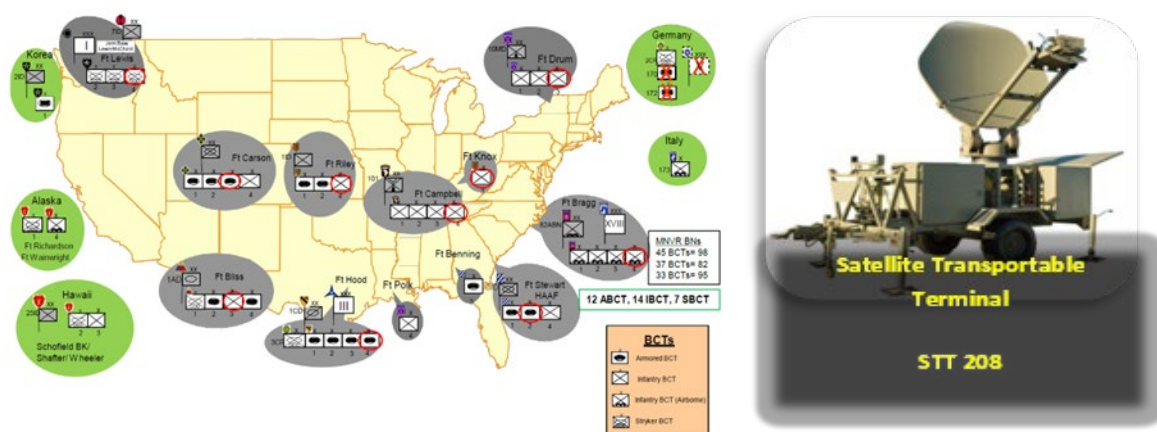
2. Description of Action: Communications-Electronics Command (CECOM) Integrated Logistics Support Center (ILSC) requests a new follow-on task order with Datapath, Inc. (DPI), 2205 Northmont Pkwy Ste 100, Duluth, GA 30096, to procure support and sustainment (maintenance and repair) of the Command, Control, Communications, Electronics Tactical (C3T) Tactical Network Transport (TNT) On The Move (OTM) (TNT-OTM); Satellite Transportable Terminal (STT) 208 program under the Responsive Strategic Sourcing for Services (RS3) contract vehicle, a Multiple Award (MA) Indefinite Delivery-Indefinite Quantity (IDIQ) contract. The anticipated task order type is Firm-Fixed-Price (FFP) and Cost-Plus-Fixed-Fee (CPFF). The period of performance (PoP) is not to exceed 5 years (one base, plus four option periods). This IDIQ Task Order (TO) is a follow-on to contract W15P7T-20-D-0007 order W56JSR-21-F-0113 with DPI. ACC-APG projects award of this task order no later than 21 March 2025, to avoid a potential break in service under the current STT 208 program's sustainment efforts. The base period of the proposed order will be funded using fiscal year (FY) 2025 Operation and Maintenance, Army (OMA) funds.

3. Description of Supplies/Services: This requirement will be for sustainment support services in support of the STT 208 system to include depot maintenance on the end item, Line Replaceable Unit (LRU) repairs, field level repairs, obsolescence management and Engineering Change Proposals (ECPs.) This requirement is highly specialized and DPI is the only source that has the capabilities and the proprietary data rights to perform this program's sustainment requirements as further detailed below is paragraph 5.

Depot maintenance level overhauls on the end item require that units ship their entire STT 208's to DPI for overhaul on the components, which then enables the STT's to remain in the field fully operational. For LRU repairs, components may be dismantled, inspected, and tested, and the failed components may be repaired. Field level repairs require the DPI Contractor Field Representatives (CFSRs) travel to the Unit locations as needed for specific repairs or replacements that are above Field Level repairable/ not in the Technical Manuals. Obsolescence management and ECPs address the rapid obsolescence of electronic components by canvassing their sub vendors on parts for which these vendors are not the original manufacturer.

The STT systems are DPI trailer-based earth terminals which can be towed anywhere a High Mobility Multipurpose Wheeled Vehicle (HMMWV/Humvee) can go or lifted virtually anywhere by helicopter. STTs have been designed to establish secure, reliable voice, video and data communications in any environment, and are therefore rugged and powerful. These systems have been tested in challenging conditions and demanding

operations. The TNT OTM System of Systems (SoS) (formerly Warfighter Information Network – Tactical Increment 2 (WIN-T Inc 2) architecture enables On-The-Move (OTM) capability to Division Headquarters (DIV HQ) and Brigade Combat Teams (BCTs). The OTM infrastructure delivers network services to command posts and enables Brigade/Battalion (BDE/BN) Commanders to perform mission command OTM with a single integrating tactical network. The STT is an integral part of this SoS architecture as it allows for Satellite Communications (SATCOM) utilizing either KU or KA bands (military or commercial) in instances where beyond line of site communications is needed. The STT 208 was fielded to Active Army Units from 2011 to 2021, with a total field density of 183 terminals. Key features include up to 56 Megabits (Mbps) throughput, Generator and End Cryptographic Unit (ECU) on board, Wideband Global Satellite (WGS) Ka band certified, Inmarsat Global Xpress (GX) type approved (Mil Ka band), and taking less than 20 minutes to set up.



The five-year estimated cost is \$24,966,929.81. The amount of this Justification was derived from an Independent Government Estimate (IGE) developed by a United States Army Combat Capabilities Development Command (DEVCOM) Engineer. The \$24,966,929.81 estimated total value is a combination of labor, indirect rates, materials, travel and fee over the five (5) year PoP.

Summary of IGE:

Base Period: March 2025 to March 2026	Value: \$4,224,931.28
Option Period 1: March 2026 to March 2027	Value: \$4,507,266.63
Option Period 2: March 2027 to March 2028	Value: \$5,162,732.63
Option Period 3: March 2028 to March 2029	Value: \$5,471,373.33
Option Period 4: March 2029 to March 2030	Value: \$5,600,625.92

Total: \$24,966,929.81

4. Authority Cited: 10 United States Code (U.S.C.) 3406(c)(2) as implemented in FAR 16.505(b)(2)(i)(B) – Only one awardee is capable of providing the supplies or services

required at the level of quality required because the supplies or services ordered are unique or highly specialized.

5. Reason for Authority Cited:

Background: In July 2021, the STT 208 officially transitioned to Sustainment. In support of Sustainment, CECOM ILSC stood up the current W15P7T20D0007-W56JSR21F0113 3-year Services Task Order with the PoP of 9/22/2021 – 9/22/2024 with a six-month extension to March 21, 2025. This current order was awarded under Global Tactical Advanced Communications Systems (GTACS) II.

Rationale: As described in FAR 16.505(b)(2)(i)(B) for Department of Defense (DoD), Only one awardee can provide the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. This service is highly specialized due to the Government not owning the Technical Data Package (TDP) to the STT systems. DPI owns all rights to their TDP of the STT systems being sustained under this requirement.

The specific services required under this task order require access to technical data that the Government does not possess. Creating ECPs due to obsolescence management and technology improvements is one of the services of this TO. In order to perform these services, the Contractor must have the ability to understand appropriate replacements for parts in the end item, and know the complex relationships between these parts, and possible replacement or repair parts that may exist, as well as possess the detailed knowledge of how the alteration to the major item will affect the interoperability with the other OTM fleet Configuration Items (CIs), particularly the Tactical Communication Node (TCN).

Contractor led depot maintenance, obsolescence management, ECPs and LRU repairs (end item down parts) are services within this TO. All these processes require testing to ensure the equipment operates properly with replacement or repaired parts. To perform these services, the Contractor must be capable of providing access to both complete testing procedures and acceptance criteria, as well as a suite of equipment on which to perform tests for replacement parts and upgrades.

Another required service in this TO is Field Service Representatives (FSR) support. These FSRs aid Units when repairs or maintenance is required that go beyond what is covered in the Technical Manuals (TMs). This helps keep equipment with Units rather than having to ship the entire system back to the Contractor for repair. These FSRs need access to technical data beyond what the Government possesses to properly perform repairs that are beyond the scope of the TM.

Without these sustainment services, there is a risk of losing SATCOM network mobility, and connectivity down to the Company level of the owning Units. This puts the Soldier and the mission at serious risk and could possibly result in the loss of life.

DPI is the original system manufacturer/integrator of the 183 fielded STT 208's. DPI owns the access to intricate technical data required to maintain/sustain/improve the STT 208. Over 40 percent of the LRU's were designed and integrated solely by DPI. The historical knowledge allows for the complex interoperability of a system of systems which make Army networking possible within the OTM fleet. The complete technical data required to perform the services in this TO is only possessed by DPI, who is the current service provider and the original equipment integrator for this major item. Project Manager Tactical Network (PM TN) Product Manager Mission Network (PdM MN) previously considered obtaining the technical data on behalf of the Government, but DPI was unwilling to sell their data.

No other vendor has access to the TDP or the data rights needed to perform the Government's requirements successfully. As stated above, the Government inquired about purchasing the TDP from DPI or if DPI was willing to sell their data rights in an email follow up to their RFI response dated 16 September 2024. DPI confirmed that they were unwilling to sell their data rights at this time. DPI also confirmed in their response that no one else has permission or access to their TDP.

If the Government does not award this proposed sustainment effort to DPI, then the only known alternative option is to start from the beginning with a redesign/ procurement of all new STT systems from a different contractor. The Government cannot afford this option due to cost, time, and the risk factors involved. Going through a new contractor to procure new STT's is estimated to take four - six years based on historical experience. The length of time to procure new STT's would mean time needed for test and evaluation, safety and environmental testing and a new Materiel Release. The Government cannot wait this amount of time to develop, test, obtain approvals, and integrate into the current OTM system due to mission urgency as this delay puts the mission and warfighter at risk. The STT 208's are currently fielded to Active Army Units like 82nd Airborne, 101st Airborne and 10th Mountain. Some of the fielded Units deploy their STT 208's around the world. As of the time of this writing, there are STT 208's in South Korea and Europe used for real world missions in support of the US Army. The timeline for a contractor to redesign the STT's is outside this requirement's timeframe. Also, this approach is cost prohibitive. Based on the historical price of STT procurements, it is estimated to cost the Government about thirty-six million (\$36,000,000) to restart and re-procure all new STT systems which is not within this requirement's budget. Also, ILSC is not currently able to pursue this course of action as the Army OMA funds appropriated for the program do not cover new procurements, making this an unviable solution. Most, or all of this estimated amount, would be comprised of duplicative costs which the Government would have no reasonable expectation of recouping through a competitive acquisition. Also, the original program office, PM TN no longer has the funding to procure new STT systems as the Army is no longer funding new procurements of the TNT-OTM system. As noted above, the requirement is in the sustainment phase. The risk involved with a new STT procurement is reintegrating the STT systems back into the TNT OTM fleet which requires compatibility with a network of systems for which the Government does not own the technical data. This poses unacceptable risk to the Government. Without the follow-on

award to DPI, Units' Readiness would drastically suffer as the ILSC would not have a subject matter expert vendor managing obsolescence, making repairs, and completing depot maintenance and there are no other viable solutions/ alternatives to pursue.

Even if the Government had the technical data rights, reverse engineering is not feasible. Based on market research, and the overall history of this STT 208 program, any effort by other vendors to reverse engineer the specialized technical data needed for sustainment of the STT 208 would be an engineering process with unnecessary inherent risks as well as unacceptable delays to the sustainment of the program. Further, either a quality reduction or a gap in the sustainment of the program would occur during the time that a reverse engineering vendor is engaging in research, experimentation, and sub-vendor relationship building to try and reproduce this technical data. The time frame for this process has been estimated by vendors at 18 months. This process will produce a reduction in the quality of sustainment services as the time spent reverse engineering technical data will negatively affect the Repair Turn Around Times (RTATs) required by the Government to maintain Unit Readiness. Furthermore, the Government does not have a spare set of STT 208 equipment to provide to a vendor as Government Furnished Equipment (GFE) completely making this unviable as there is no STT equipment to provide potential contractors to engage in a reverse engineer process.

The STT 208 has been in the field since 2014 and there have been multiple ECPs which DPI has implemented for the Government, including a large ECP entitled the Wind ECP, in which DPI sent CFSR's out to the Field to upgrade the entire fielded fleet. This was completed by DPI under the previous PdM MN owned Task Order. To accurately assess, repair, and maintain this equipment, a vendor would need to understand not only the current state of the equipment, but also how these changes affect the interoperability of the STT 208 with the remaining OTM fleet regarding future maintenance. As the only sustainer of this CI, DPI has access to the current and historical configuration management data. A change in some of the STT 208 hardware (HW) can also affect Unit software updates and their provisioning with the network. DPI is the only vendor that has the proper diagrams and drawings as well as various test equipment and procedures, and the technical data package. There are specific technical documents which include Computer Aided Design (CAD) models, drawings, cabling diagrams, signal interconnect design documents and provisioning items associated with the STT 208 system and item as well as individual LRU's and down parts. These are needed to validate system-level functions against Key Performance Parameters (KPPs). This combination of detailed technical data is possessed exclusively by DPI. Thus, DPI is the only vendor with access to the technical data required to include test and alignment procedures, ability to test the specially modified commercial off the shelf LRU's and down parts, including both software and hardware interoperability.

The Government does not own technical data for the STT 208 except for the Engineering Data for Provisioning (EDFP) and TM's. The EDFP's and TMs are

insufficient to enable competition. Thus, competition is not possible as was affirmed during the Government's Market Research.

This acquisition of sustainment services must be accomplished through an exception to fair opportunity primarily because of the Government's lack of technical data beyond what is required for item provisioning and field level documentation, such as TMs, training documentation, weight, dimensions, packaging instructions, part numbers, Commercial and Government Entity (CAGE) codes, and prices. This is not sufficient technical data to fully perform the requirements of this effort. To effectively perform these sustainment support services, a vendor would need the knowledge of technical details of how the systems are put together down to the Shop Replacement Unit (SRU) level, including level 3 engineering drawings, wiring diagrams, interconnect diagrams, and SRU assembly diagrams. The technical data that is required to perform these services has not been obtained by the Government in previous efforts on these systems, and DPI retains the exclusive rights to the technical data that would be necessary to enable competition.

The Government considered several alternatives to an Exception to Fair Opportunity award:

Suspending operations. Suspending operations for the STT 208 program is not feasible, as Units use their STT 208's in both exercises and real-world missions. The STT 208 (and entire OTM fleet) has a requirement to be in the field until FY41. The STT 208 program is the Army's only SATCOM network which is OTM. This system will require continuous sustainment services to remain mission capable until they are no longer in the field. The STT 208 officially transitioned from the PM TN PdM MN to CECOM ILSC in July of 2021. Per Army Material Command (AMC), ILSC is to achieve and maintain a stock availability metric of 100% and a Readiness metric of 90%. By suspending operations these metrics will be impossible to achieve or maintain and would cripple the Army's communication network.

In-house sustainment. Using Government "in house" personnel and expertise is not a feasible alternative for this effort. Like other vendors in the industry, the Government also does not own or have access to the technical data necessary to perform these sustainment services. Additionally, this effort also has a significant manpower requirement. The Government does not have the funding to support the Government Civilian manpower that would be necessary to perform these sustainment services.

Without this exception to fair opportunity TO, the STT 208 program would be unsupported. During the time that the Government would be working with DPI to obtain the TDP and Government Purpose Rights, sustainment support operations would be suspended for 2-4 years. Depot maintenance, and CFSRs would not be available to keep systems operational and in safe working order. In addition, during this time that sustainment support operations are suspended, due to the commercially modified electronic components within the STT 208 program, rapid obsolescence would be constant, and unmanaged. LRUs that become obsolete would be impossible to repair or

procure. Because sustainment support operations, including obsolescence management would be suspended, suitable replacements for these obsolete LRUs would not be identified during this time and there would be no way to replace unserviceable LRUs, causing a drastic decrease in operational readiness and stock availability.

Based on historical data trends, LRUs would gradually fail on systems, causing the STT 208 to become inoperable, and other circumstances will occur (such as unforeseen equipment damage and normal wear and tear from repeated use) that will make the STT 208 inoperable or unsafe to operate. Without the STT 208 being operable, it would negatively influence the Units' SATCOM network operations. Without these sustainment services, there is a risk in losing SATCOM network mobility, high speed communications and connectivity down to the Company level for Army BCTs and Divisions (DIVs). Without appropriate communications, the loss of capability could result in delays such as; the Soldier being unable to elevate concerns to command level, coordinate with other Units, perform maneuvers, or receive details on missions. This loss of communication would put the Soldier and the mission at serious risk.

The commercially modified electronic components within the STT 208 program led to constant rapid obsolescence and are required to be managed for the life of the program. Due to system complexity, the STT 208 has critical highly specialized requirement of management of end-of-life items to the level of quality required for sustainment. These services include but are not limited to testing, safety, interoperability, cost and sustainability. Obsolescence monitoring/reporting is essential to understand Diminishing Manufacturing Sources & Material Shortages (DMSMS) current and future impacts.

The current Sustainment contract with DPI ends in March 2025. A gap in services for any amount of time could potentially impact the Army's OTM SATCOM network. DPI is the only source capable of providing the sustainment support services at the level of quality required because the services ordered are highly specialized and DPI is the only source capable of performing due to the proprietary technical data necessary for performance. If the exception to fair opportunity is not approved for this TO, sustainment support operations would be suspended, making readiness and stock availability metrics impossible to achieve or maintain, which would cripple the Army's communication network. Having an unsustainable weapon system and OTM SATCOM Brigade and Division network could have the potential for loss of Soldier lives.

6. Efforts to Obtain Competition: The Government posted a Request For Information (RFI) on 3 July 2024 as discussed below in Section 8 of this document. The RFI was sent to the vendors under the RS3 MA IDIQ contract vehicle. DPI was the only vendor to respond. Moreover, because this requirement will be procured under the Multiple Award Task Order Contract (MATOC) and it was synopsisized before award in accordance with FAR part 5 Publicizing Contract Actions, this effort will not be synopsisized per FAR 5.202(a)(6)(11).

a. Effective competition. Obtaining effective competition will not be feasible for the sustainment services on this TO. As described above in section 5 the technical data is not available to the Government.

b. Subcontracting competition. The contractor will be required to submit a Subcontracting Plan as part of its proposal submission. The Government will ensure the prime contractor obtains as much subcontracting competition as possible through the inclusion of the following clauses in the TO: FAR 52.244-5, Competition in Subcontracting, FAR 52.219-8, Utilization of Small Business Concerns, FAR 52.219-9, Small Business Subcontracting Plan. The clauses ensure that DPI considers small business concerns and participation in performance of the proposed task order.

7. Actions to Increase Competition: The Government has determined that any program costs and schedule impacts related to pursuing technical data rights are too costly and time prohibitive at this time. Therefore, CECOM ILSC has not identified any courses of action to increase competition for this portion of the sustainment effort. The Government will however continue to publish sources sought announcement, RFIs, attend trade shows, and conduct technical interchanges with vendors.

8. Market Research: Market research was performed by Government technical representatives over the past several months of calendar year 2024. This research included communication with industry and Government technical experts concerning capabilities to meet the logistics support needs of the Tactical Network Transport (TNT) On-the-Move (OTM) Satellite Transportable Terminals High Powered Plus (STT-HP+) 208 Sustainment Support Services program. The Government explored multiple market research techniques to meet the logistics support needs of the system. Knowledgeable people, primarily within the Government, were contacted within the STT market. The System for Award Management (SAM.gov) was queried to provide relevant information on acquisitions. Internet tools were utilized to perform web searches for relevant materials. The Government issued a formal RFI to all RS3 contract holders for potential service providers. Catalogs and literature published by relevant service providers were reviewed.

Market research was also conducted via the issuance of draft requirements documents to all RS3 prime contract holders. On July 3, 2024, the Government sent out a RFI with the RS3-23-0014 TNT OTM STT-HP+ 208 Sustainment Support Services Draft PWS to the RS3 contract holders. Questions and comments in response to the Draft PWS were due July 22, 2024. The Government also requested that potential offerors provide their "intent to bid" by July 22, 2024. DPI, the Original Equipment Manufacturer (OEM), sent the only response and is deemed capable of fulfilling the requirements of this task order due to their vast engineering, production, test knowledge, actual hands-on experience, tools, and facilities. Of note, DPI has been performing to the same requirements as stated in the PWS for PM TN INC 2 since 2013. As noted, no other RS3 contractors responded to the RFI.

The Government followed up with DPI regarding its RFI response to inquire about the TDP as well as potential third parties that are capable to perform the work outlined in the PWS. An email follow up was sent on 31 October 2024 to DPI with the following questions:

1. Does anyone else have permission or access to TDP?
2. Is DPI willing to give rights to TDP to the Government?
3. Is DPI willing to sell rights to the TDP to the Government?
4. If so, what is the rough estimated cost?
5. Are there any third parties that are capable to perform this work?

DPI's responses were as follows:

1. "No."
2. "Not at this time."
3. "Not at this time."
4. "N/A"
5. "No, not to the current specifications and certifications already held."

DPI's responses not only confirm that they own all the rights to their TDP and are unwilling to sell them at this time, but also that the TDP is a necessary requirement to perform the work needed on this sustainment effort. If there were any alternatives, the OEM states that no other vendor could meet the requirement for the current specifications and certifications without access to their TDP.

Based on the lack of responses from the RFI posted, it's concluded that the TDP is critical, as interest from competitors has dwindled due to the lack of viable solutions without it. Previous efforts have shown that DPI has been the only vendor to propose a viable solution on STT projects and that remains true currently. DPI demonstrates a clear advantage as the current incumbent servicing both STTs and have a full understanding of the requirement; they have the necessary technical data, testing equipment and historical knowledge to complete the scope of work without a delay in RTAT or sustainment services. DPI was deemed the only responsible contractor to respond to the RFI and as the OEM, have full ownership of the TDP necessary to perform the requirement. DPI is the OEM for over 40% of the LRUs identified in the RFI, and the remaining LRUs are integrated in DPI's systems, therefore they have the supply chain experience with each LRU vendor. They have intimate knowledge of all ECPs implemented on each STT, in addition to future ECPs that will be required. As technical experts, the ILSC INC 2 team recognizes these factors provide DPI with the requisite years of engineering, manufacturing, test and sustainment experience to complete the full scope of this TO without a lapse in service. To ensure that there were no other viable options due to the TDP, the Government reached out to DPI to inquire if they were willing to give or sell those rights to the government or if anyone else had access, and their response was no.

9. Other Facts:

a. Procurement history.

Contract: W15P7T-13-D-0015 0001

Contractor: Rockwell Collins Satellite Communications Systems, Inc. (Now known as DataPath Inc.)

Award Date: 27 September 2013

Competitive Status: Competitive under GTACS

The first order for Rockwell Collins' Satellite Communications Systems, Inc. (Datapath Inc.) STT's was competitive between Rockwell Collins and General Dynamics One Source under the GTACS contract vehicle. The order was awarded to Rockwell Collins via Lowest Price Technically Acceptable (LPTA) source selection process. Data rights to the STT system were not purchased as part of this order. The purpose for this contract was to acquire the STT systems and the Government did not pursue the proprietary data rights to the system at the time.

Contract: W15P7T-13-D-0015 0007

Contractor: DataPath, Inc.

Award Date: 29 October 2015

Competitive Status: Exception to Fair Opportunity

Authority: Stated from the Justification for Exception to Fair Opportunity document, this order utilized FAR 16.505(b)(2)(i)(B), Only one awardee is capable because supplies or services are unique or highly specialized.

The second order under the GTACS I contract vehicle in October 2015 was awarded to DataPath Inc. on an Exception to Fair Opportunity basis, for two (2) STT-HP systems. The requirement for PM TN states in the Performance Work Statement (PWS), the need for two of the exact replicas of the STT systems. The Request For Information (RFI) document shows there were two vendor responses with interest in this requirement, DPI Inc. and Nexagen Networks Inc., a Woman-Owned Small Business. However, it was determined that Nexagen's strategy required two AN/TSC-202 systems, a terminal in the technical specifications, to reverse engineer and produce their own system. This was determined not a viable option as the Market Research Report (MRR) from the acquisition states, "As the original equipment manufacturer (OEM) of the currently fielded AN/TSC-202 STTs and its accompanying terminal management software (MaxView), DataPath is uniquely qualified and well-equipped to provide the Government with two STTs configured in a manner that will enable Post-Deployment Software Support and troubleshooting operational efforts. Being that DataPath is the OEM, the Government will receive cost effective and reliable STTs, and PDSS services that will allow for a seamless engineering and troubleshooting integration within the PM WIN-T operational support lab. It also states, "Due to the complexity of the terminals and proprietary information owned by DataPath Inc.; DataPath Inc is the only available resource for the recommended proposal." The acquisition of STT systems began as a competitive effort, but due to the proprietary data rights, it quickly became a sole source environment with Datapath Inc. as the unique and specialized proprietary information

needed for the requirement is strictly owned by DataPath Inc. The market research also concludes that this option is the most cost effective and reliable for the Government. Having the technical data rights to the currently fielded systems has been critical in the ability to provide a reliable and cost-efficient acquisition strategy, and DataPath Inc., the OEM, has always been the only vendor with these rights.

Contract: W15P7T-13-D-0015 0009
Contractor: DataPath, Inc.
Award Date: 13 September 2016
Competitive Status: Competitive under GTACS

The requirement for this effort was to provide sustainment, maintenance, repair services, and support for Warfighter Information Network-Tactical (WIN-T) Increment 2 (INC 2) (now TNT-OTM) to restore INC 2 SATCOM equipment to the fully functional capability associated with the equipment configuration baseline. The Market Survey results indicated that four (4) vendors intended to propose on this effort if a Request for Task Execution Plan (RTEP) was solicited. However, there was only one offeror and that was DataPath, Inc. Again, this indicates a pattern that the proprietary data rights owned by the OEM have been critical in past sustainment and support service requirements of STTs which leads to competition being an unviable option.

Contract: W15P7T-20-D-0007 W56JSR-21-F-0113
Contractor: DataPath, Inc.
Award Date: 22 September 2021
Competitive Status: Competitive

The RFI for this procurement searched for vendors who could provide Technical Support Services and Program Management Support Services in support of Communication-Electronics Command (CECOM) Integrated Logistics Support Center (ILSC), and the Product Management Office for Command, Control Communications Tactical (C3T) with life cycle management support for the Warfighter Information Network – Tactical Increment 2 (WIN-T INC 2) STTs and equipment including engineering support, technical Field Service Representatives (FSRs), Deep clean/Depot Maintenance for the major end items, repair of Line Replaceable Units (LRUs), and other sustainment/support services to ensure the sustainability of STTs within the INC 2 portfolio. Three (3) proposals were received in response to the RTEP from vendors ComTech, Envistacom, and DPI. However, the technical evaluation for both offerors other than DPI revealed an inability to complete the requirement due to their lack of access to DPI's technical data rights package, making both proposals un-awardable. There's a trend that leads to sole source/exception to fair opportunity as DPI has been the only vendor since the first order of their STTs to be awarded in any contracts involving production, sustainment, and/or support services of STTs. The initial award was competitive back in 2013, but after that there was not any viable competition due to DPI owning all proprietary data rights to their STTs.

10. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: [REDACTED] Title: Engineer

11. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: 12/9/2024

Typed Name: [REDACTED] Title: ILSM Team Lead

12. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable via cost/price evaluation using the techniques outlined under FAR 15.404-1, Price Analysis, Cost Analysis, and Cost Realism Analysis comparing the contractor's proposal to the Independent Government Estimate and current Task Order pricing.

Signature: _____ Date: _____

Typed Name: [REDACTED] Title: Contracting Officer

13. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: _____ Date: _____

Typed Name: [REDACTED] Title: Contracting Officer

Approval

Based on the foregoing justification, I hereby approve the procurement of Satellite Transportable Terminal sustainment/ support services on an exception to fair opportunity basis pursuant to the authority of 10 U.S.C. 3406(c)(2) as implemented by FAR 16.505(b)(2)(i)(B) – Only one awardee can provide the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized. subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for acquisition.

Signature: _____ Date: _____

Typed Name: [REDACTED] _____ Title: Senior Contracting Official